

**2023 UPDATED
BYLAWS
OF
TIMBERHILL HOMEOWNERS ASSOCIATION**

**ARTICLE I
NAME**

1. The name of the corporations is **TIMBERHILL HOMEOWNERS ASSOCIATION**. Referred to as the “Association” in these BYLAWS. The principal office of the corporation shall be located at 903 NW Becca Ave. Corvallis, Oregon. Meetings of the members and directors may be held at such places within the State of Oregon as designated by the Board of Directors.

**ARTICLE II
DEFINITIONS**

1. Definitions shall be those prescribed in the **FIRST AMENDED AND RESTATED PROTECTIVE COVENANTS, CONDITIONS, DECLARATIONS, AND RESTRICTIONS FOR TIMBER HILL NO. 1 & TIMBERHILL FIRST ADDITION** recorded in Document No. 2022-633281 Benton County Deed Records Benton County, Oregon referred to in these BYLAWS as “Covenants”.

**ARTICLE III
GENERAL**

1. These BYLAWS are supplements to the Covenants and the Articles of Incorporation of Timberhill Homeowners Association referred to in these BYLAWS as “Articles.” Any item of topic not covered or discussed in these BYLAWS remain the same as stated in the Covenants and Articles.

**ARTICLE IV
BOARD OF DIRECTORS**

1. The affairs of this Association shall be managed by a board of no more than 13 directors. All directors shall be a member of the Association.
2. At each annual meeting, members of the Association shall elect, by majority vote of those attending, directors for a term of three years to fill the position of any director whose term has expired, resigned, or removed.
3. Any director may be removed from the board with or without cause by a majority vote of the members of the Association at the annual meeting.
4. No director shall receive compensation for any service rendered to the Association. However any director may be reimbursed for actual expenses incurred in performance of duties as a director of the Association.

5. No director shall take any action in the absence of a meeting without obtaining written consent of all other board members. Any action so approved shall have the same effect as taken at a meeting of the directors.

ARTICLE V MEETING OF DIRECTORS

1. Regular meetings of the Board of Directors shall be held at least twice a year at a place and hour as may be fixed from time to time by the agreement of the board.
2. Special meetings of the board shall be held when called by the President of the Board of Directors, or by any two directors, after notifying all directors five days in advance of the special meeting.
3. A majority of directors shall constitute a quorum for the transaction of business. Every act or decision done or made by a majority of the directors shall be regarded as an act of the board.

ARTICLE VI NOMINATION AND ELECTION OF DIRECTORS

1. The board of Directors shall ask members if they would like to serve as a director. With permission of the members, the directors will nominate them for election to the Board of Directors at the annual meeting. Nominations for election to the Board of Directors may be made by any member at the annual meeting.
2. Election to the board shall be by a majority vote of those attending the annual meeting. The voting shall be an open vote by a physical or verbal indication of agreement of members choice.

ARTICLE VII AUTHORITY AND RESPONSIBILITIES OF THE BOARD OF DIRECTORS

1. **The Board of Directors shall have the authority to:**
 - A. exercise for the Association all powers, duties and authority vested in or delegated to the Association and not reserved to the membership by other provisions of these BYLAWS, Articles or Covenants;
 - B. adopt and publish rules and regulations governing the use of the Common Area and Facilities and the personal conduct of the members and their guest while using the Common Area and Facilities, and to establish fees for compensation for non-compliance of the established rules; and
 - C. employ contractors and or other personnel to execute action approved by the board or by a majority of the members attending the annual meeting.
2. The Board of Directors shall:
 - A. obtain compliance with terms and conditions of the Covenants, Articles, and BYLAWS

- B. keep a complete record of all its acts and corporate affairs and present a copy to the members at the annual meeting;
- C. supervise all officers, agents and employees of the Association in the performance of their duties;
- D. fix the amount of the annual assessment against each lot at least thirty days before each annual assessment period and send written or electronic notice of each assessment to each member prior to the beginning of each assessment period; and
- E. procure and maintain adequate liability insurance on the property owned by the Association.

ARTICLE VIII COMMITTEES

1. Replacements for the Architectural Committee shall be as provided in the Covenants.
2. The Board of Directors may appoint other committees as deemed necessary to execute its authorities and its responsibilities.
3. Each committee should receive complaints from members on any matter involving Association function, duties, and activities within its field of responsibility. It will dispose of complaints as it deems appropriate or refer them to the Board of Directors.

ARTICLE IX MEETING OF MEMBERS

1. The annual meeting will be scheduled by the directors during June or July of each year.
2. Special meetings may be called at any time by the President, by three of the directors or by written request of one-fourth of all members of the Association.
3. Written notice of the meeting of the members shall be given by the Secretary by mailing or by electronic means a copy of the notice at least 15 days before the meeting to members of the Association.
4. One-tenth of the entire membership eligible to vote must be present at the annual meeting or have submitted proxies to make a quorum for any action unless the Covenants, BYLAWS or Articles state a different amount for a quorum can be present. The annual meeting will be adjourned until a quorum can be present.
5. At all meetings of members, each member may vote in person or by proxy. All proxies shall be in writing and filed with the Secretary one day before the meeting. Proxies are revocable.

ARTICLE X OFFICERS AND THEIR DUTIES

1. The Board of Directors shall at their first meeting after the annual members meeting elect Association of officers, if needed. The officers of the Association shall be the President, Secretary, and Treasure, who shall at all times be members of the Board of Directors.

2. The officers of the Association shall be elected annually by the board and each shall hold office for three years unless the officer resigns, is removed or disqualified to serve.
3. The board may elect other officers as the affairs of the Association may require and preform duties as assigned by the board.
4. Any officer may be removed from office with or without cause by the board. Any officer may resign at any time by giving written notice to the board, the President or Secretary. The resignation shall take effect on the date of receipt of the notice or at any later time specified and acceptance of the resignation shall not be necessary to make it effective.
5. A vacancy in any office may be filled in the manner prescribed in paragraph 2, above, or at any board meeting called for the purpose of filling such vacancy.
6. Duties of the officers are:
 - The PRESIDENT shall preside at all meetings of the Board of Directors; execute orders and resolutions of the Board; sign all legal and other written document of the Association; shall approve and or sign all checks and promissory notes.
 - The SECRETARY shall record the votes and keep minutes of all meetings and proceedings of the board and of the members; serve notice of meeting of the board and the members; keep appropriate current records showing the members of the Association together with the addresses; and perform other duties required by the board.
 - The TREASURE shall be responsible to see that all the monies of the Association are collected, received and deposited in appropriate bank accounts, to disburse funds as directed by the board, to see that proper account books are maintained and audited; sign all checks and promissory notes of the Association; and to see that the future year annual budget with the statement of the prior year income and expenditures is prepared and presented to the members at the annual meeting.

ARTICLE XI

BOOKS AND RECORDS

1. The books, records and papers of the Association shall at all times, during reasonable business hours, be subject to the inspection by any member at the principle office of the Association. The Covenants, Articles and BYLAWS shall be available for inspection by any member at the principal office of the Association, where copies many be purchased.

ARTICLE XII

AMENDMENTS

1. These BYLAWS man be amended at a regular or special meeting of the Board of Directors or member of the Association by a majority vote of the attending and eligible to vote.
2. In the case of any conflict between the Articles and the Covenants and these BYLAWS, the Articles and Covenants shall control.

ARTICLE XIII
MISCELLANEOUS

1. The fiscal year of the Association shall begin on the first day of July and end on the last day of June each year.

We, being the directors of the Association approve these BYLAWS this 20th day of November, 2023.

APPROVAL OF THE BOARD OF DIRECTORS

Lee Strandberg, President

Lee Strandberg

Date

11-20-23

Debbe Culley, Secretary

Debbe Culley

Date

11/20/23

Ray Wilson, Treasure

Ray Wilson

Date

11/20/23

Tom Weeks

Thomas K. Weeks

Date

11/20/23

John Tappeiner

John C. Tappeiner

Date

11/20/23

Susan Mukatis

Susan C. Mukatis

Date

11/20/23